

advocated by Cross-Defendant.

The Demurrer on this ground is **overruled**.

Indemnity Claims

Cross-Defendant demurs to Cross-Complainant's indemnity claims (contribution, equitable indemnity, implied indemnity, and comparative indemnity) on the grounds that they are "redundant." (Dem. at § III(E).) Cross-Complainant has not responded to these arguments in opposition. Though the Court has doubts about the merits of Cross-Defendant's arguments, Cross-Complainant's failure to oppose them is a tacit admission of their merit.

The Demurrer to the causes of action for contribution, equitable indemnity, implied indemnity, and comparative indemnity is **sustained**, with leave to amend.

Declaratory Relief

Similarly, Cross-Defendant demurs to Cross-Complainant's claim for declaratory relief on the grounds that it is duplicative of her indemnity claims. Cross-Defendant also demurs to this cause of action on the grounds that declaratory relief is not available to remedy past conduct. Cross-Complainant did not oppose these arguments.

The Demurer to the declaratory relief cause of action is **sustained**, with leave to amend.

13. 9:00 AM CASE NUMBER: MSC21-02445
CASE NAME: NIST VS FARRELL
HEARING ON DEMURRER TO: SHANNA FARRELL'S CROSS-COMPLAINT
FILED BY: NIST, WILLIAM G
TENTATIVE RULING:

Before the Court is Cross-Defendant William G. Nist and Mari K. Nist (collectively, "Cross-Defendants" or "the Nists")'s Demurrer. The Demurrer relates to Cross-Complainant Shanna M. Farrell ("Cross-Complainant" or "Farrell")'s Cross-Complaint for (1) trespass to timber (Civ. Code § 3346), (2) damage to real property, (3) trespass to property, (4) nuisance, (5) interference with easement, (6) negligence, (7) negligence (tort of another), (8) trespass to chattels, (9) unjust enrichment, (10) unlawful business practices (Bus. & Prof. Code § 17200), (11) contribution, (12) equitable indemnity, (13) implied indemnity, (14) comparative indemnity, and (15) declaratory relief.

Cross-Defendants demur to all but the thirteenth cause of action pursuant to CCP § 430.10(e).

For the following reasons, the Demurrer is **sustained-in-part** and **overruled-in-part**.

Analysis

(1) trespass to timber (Civ. Code § 3346)

Cross-Defendants demur to this cause of action on the grounds that Cross-Complainant has failed to

state a claim.

“‘Trespass is an unlawful interference with possession of property.’ The elements of trespass are: (1) the plaintiff’s ownership or control of the property; (2) the defendant’s intentional, reckless, or negligent entry onto the property; (3) lack of permission for the entry or acts in excess of permission; (4) harm; and (5) the defendant’s conduct was a substantial factor in causing the harm. (See CACI No. 200[2].)” (*Ralphs Grocery Co. v. Victory Consultants, Inc.* (2017) 17 Cal.App.5th 245, 261-262, internal citation omitted.) Where the trespass results in damage to timber, Civil Code Section 3346 provides for enhanced damages.

The Cross-Complaint alleges that (1) “[a]t all times relevant to this action, Farrell owned, held an equitable interest in, occupied, or controlled the property” (XC at ¶ 34), (2, 3) “Cross-Defendants and ROES 1 – 50 intentionally, recklessly, or negligently entered the Property and cut down or damaged trees located on the Property without Co-Owners’ permission and/or exceeding the scope of any permission” (XC at ¶ 36), and (4,5) “Farrell was harmed by these actions of Cross-Defendants and ROES 1 – 50 in damaging the trees on the Property which was a substantial factor in causing Farrell’s harm.” The predicate factual allegations include allegations that the Nists have “unlawfully cut Cross-Complainant’s trees on Cross-Complainant’s Property” (XC at ¶ 4) and generally that “Cross-Defendants and ROES 1-50 intentionally and recklessly cut down trees on and around the Property without Co-Owners’ permission.” (XC at ¶ 18(a).)

These allegations are sufficient at this stage of the proceedings. The Demurrer to this cause of action is **overruled**.

(2) damage to real property

Cross-Defendants demur to this cause of action on the grounds that Cross-Complainant has failed to state a claim.

“‘[A] cause of action for damage to real property accrues when the defendant’s act causes “immediate and permanent injury” to the property or . . . when there is “[a]ctual and appreciable harm” to the property.’” (*Stofer v. Shapell Industries, Inc.* (2015) 233 Cal.App.4th 176, 189.)

Here, the Cross-Complaint alleges that the Cross-Defendants “repeatedly dumped debris, junk, and soil upon the Property” (XC at ¶ 18(c)) which caused damage to the Property and that the Cross-Defendants “dragged shipping containers across the Property which has caused damage to the Property”. Though undifferentiated with respect to the Nists and the Contractor Defendants, the Cross-Complaint alleges sufficient facts to state a claim for damage to real property.

The Demurrer to this cause of action is **overruled**.

(3) trespass to property

Cross-Defendants demur to this cause of action on the grounds that Cross-Complainant has failed to state a claim.

The elements of trespass are: (1) the plaintiff’s ownership or control of the property; (2) the defendant’s intentional, reckless, or negligent entry onto the property; (3) lack of permission for the

entry or acts in excess of permission; (4) harm; and (5) the defendant's conduct was a substantial factor in causing the harm. (*Ralphs Grocery Co. v. Victory Consultants, Inc.* (2017) 17 Cal.App.5th 245, 262.)

The Cross-Complaint specifically alleges that "the Nists have dumped debris on Cross-Complainant's Property, unlawfully cut Cross-Complainant's trees on Cross-Complainant's Property" and "damaged the bridge on Cross-Complainant's Property, damaged Cross-Complainant's fences and personal property located at the Property[.]" (XC at ¶ 4.) The Cross-Complaint otherwise adequately alleges the general elements of trespass to property: (1) Farrell owns the Property (XC at ¶ 1), (2) Cross-Defendants intentionally, recklessly, or negligently entered the Property (*id.* at ¶ 45), (3) Farrell did not give permission for Cross-Defendants to enter the Property and/or Cross-Defendants exceeded the scope of their authorization in entering the Property (*id.* at ¶ 46), (4) Cross-Defendants harmed the Property through leaving debris and equipment upon the Property (*id.* at ¶ 47), and (5) Cross-Defendants' conduct was a substantial factor in causing Farrell's harm (*id.* at ¶ 48.).

The Demurrer to this cause of action is **overruled**.

(4) nuisance

Cross-Defendants demur to this cause of action on the grounds that Cross-Complainant has failed to state a claim.

"Civil Code section 3479 defines a nuisance as '[a]nything which is injurious to health, or is indecent or offensive to the senses, or an obstruction to the free use of property, so as to interfere with the comfortable enjoyment of life or property.'" (Stoiber v. Honeychuck (1980) 101 Cal.App.3d 903, 919.)

"The elements of an action for private nuisance are: First, the plaintiff must prove an interference with his use and enjoyment of his property. Second, the invasion of the plaintiff's interest in the use and enjoyment of the land [must be] substantial, i.e., that it cause[s] the plaintiff to suffer 'substantial actual damage. Third, [t]he interference with the protected interest must not only be substantial, but it must also be unreasonable, i.e., it must be of such a nature, duration or amount as to constitute unreasonable interference with the use and enjoyment of the land.'" (Mendez v. Rancho Valencia Resort Partners, LLC (2016) 3 Cal.App.5th 248, 262-63 [internal citations and quotations omitted].)

The Cross-Complaint alleges that the Nists caused a nuisance by repeatedly blocking roads, bridges, and easements necessary for Farrell to travel to and from her home. (XC at ¶ 22.) The Cross-Complaint further alleges that Cross-Defendants used bolt cutters to cut locks on fences and replaced them with their own locks (*id.* at ¶ 22), erected fences across the road leading to the property (*id.* at ¶ 24), and blocked Co-Owners access to the roads and the bridge on their Property with their vehicles (*id.* at ¶ 25.)

These allegations are sufficient at this stage of the proceedings. The Demurrer to this cause of action is **overruled**.

(5) interference with easement

Cross-Defendants demur to this cause of action on the grounds that Cross-Complainant has failed to

state a claim.

To prevail on a claim for interference with easement, plaintiffs must plead and prove (1) the existence of a valid easement benefitting plaintiffs, and (2) conduct by defendants that unreasonably interferes with plaintiffs' use and enjoyment of the easement. (*Metzger v. Bose* (1957) 155 Cal.App.2d 131, 133.)

The Cross-Complaint alleges that (1) Farrell has an easement on the land of Cheryl Morgan for ingress and egress to the Property (XC at ¶ 61), and that (2) Cross-Defendants unreasonably obstructed and interfered with Farrell's use of the easement to access the Property by blocking such easement through fences, vehicles, threats, and other means. (*id.* at 61.)

These allegations are sufficient at this stage of the proceedings. The Demurrer to this cause of action is **overruled**.

(6) negligence

Cross-Defendants demur to Cross-Complainant's cause of action for negligence on the grounds that it fails to allege facts sufficient to state a cause of action against the Nists and there is a misjoinder of parties.

The elements of a negligence cause of action are a legal duty owed by the defendant to the plaintiff to use due care, breach of that legal duty, causation, and injury to the plaintiff. (*Holmes v. Summer* (2010) 188 Cal.App.4th 1510, 1528.) The existence of a legal duty is a question of law for the court. (*Id.* at p. 1518.)

As a threshold issue, the Cross-Complaint does not allege a contractual relationship between Farrell and the Nists. And, as the Court noted in a prior order in the underlying action, relief under negligence requires that the defendant owe a duty to the plaintiff "that is 'assumed by the defendant or imposed on the defendant as a matter of law, or that arises out of a relationship between the two.' [Citation.]" *Plotnik v. Meihaus* (2012) 208 Cal. App. 4th 1590, 1608 [quoting *Burgess v. Sup. Ct.* (1992) 2 Cal. 4th 1064, 1073].) The relationship between the parties (adjoining property owners) does not appear to fall within the types of preexisting relationships which give rise to a duty of care. (See *Sher v. Leiderman* (1986) 181 Cal.App.3d 867, 884 ["[m]ere ownership of adjoining lots, however, does not give rise to a heightened duty of care[.]".])

The demurrer to this cause of action is **sustained**, with leave to amend.

(7) negligence (tort of another)

Under the tort of another doctrine, "[a] person who through the tort of another has been required to act in protection of his interests by bringing or defending an action against a third person is entitled to recover compensation for the reasonably necessary loss of time, attorney's fees, and other expenditures thereby suffered or incurred." (*Prentice v. North American Title Guaranty Corp.* (1963) 59 Cal.2d 618, 620.) It is an independent claim where the attorney's fees are an element of compensatory damages that occurred as a result of the violation of some tort duty between the tortfeasor and the plaintiff seeking damages under the doctrine. (*Sooy v. Peter* (1990) 220 Cal. App. 3d 1305, 1310.)

For the same reasons as discussed above (failure to allege duty of care), the Court **sustains** the

demurrer to this cause of action, with leave to amend.

(8) trespass to chattels

Although the Nists challenge Farrell's trespass to chattel's cause of action in their notice of Demurrer, their memorandum of points and authorities contains no argument in support of their challenge to this claim. Accordingly, the Demurrer is **overruled**.

(9) unjust enrichment

Cross-Defendants demur to the cause of action for unjust enrichment on the grounds that it fails to allege specific facts showing how Cross-Defendants were unjustly enriched at Cross-Complainant's expense. The Court notes that, as with much of Cross-Defendant's memorandum of points and authorities, there is no citation to authority.

"[T]he elements for a claim of unjust enrichment [are]: receipt of a benefit and unjust retention of the benefit at the expense of another. [Citation.]" (*Lectrodryer v. SeoulBank* (2000) 77 Cal.App.4th 723, 726; see also *Ghirardo v. Antonioli* (1996) 14 Cal.4th 39, 50 [in accord].)

The Cross-Complaint alleges that "[a]lthough Unlicensed Contractors and Roes 1-50 were hired to perform work for the benefit of Co-Owners, Unlicensed Contractors and Roes 1-50 did not perform work for the benefit of Co-Owners and instead performed work for their own and the Nists' benefit." (XC at ¶ 18.) That is sufficient at this stage of the proceedings. The Demurrer to this cause of action is **overruled**.

(10) unlawful business practices (Bus. & Prof. Code § 17200)

Cross-Defendants demur to this cause of action on the grounds that the Business and Professions Code does not apply to Cross-Defendants and has misjoinder of party. In opposition, Cross-Complainant contends that an unlawful business activity includes performing unpermitted modifications to structures and failing to comply with local codes. (Opp. at 6:7-12 [citing *People v. McKale* (1979) 25 Cal.3d 626, 632; *Olszewski v. Scripps Health* (2003) 30 Cal.4th 798, 827; and *Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 928.]) She also argues that her allegations of violations of local code and State law "render the actions of the Nists unlawful business practice under Business & Professions Code sections 17200." (Opp. at 6:22-24.)

While true that "[a]n 'unlawful business activity' includes 'anything that can properly be called a business practice and that at the same time is forbidden by law.'" (People v. McKale, supra, at 632), it is also the case that the Cross-Complaint is bereft of allegations which would form the basis for a claim of unlawful business activity on the part of the Nists. While the opposition references local codes and State law, there are no references to such predicate statutory violations in the Cross-Complaint.

The Demurrer to this cause of action is **sustained**, with leave to amend.

(11) contribution

Cross-Defendants demur to this cause of action on the grounds that Cross-Complainant has again failed to state a claim. The demurrer makes the same arguments to the contribution cause of action

as the indemnity cause of action.

Equitable indemnity and contribution are similar to one another in that each cause of action is a mechanism for shifting liability among wrongdoers who are liable to the same person for the same loss. However, a contribution cause of action “can come into existence *only after rendition of a judgment* declaring more than one defendant jointly liable to the plaintiff.” (*Coca-Cola Bottling Co. v. Lucky Stores, Inc.* (1992) 11 Cal.App.4th 1372, 1378 [italics added] [contribution “requires a showing that one of several joint tortfeasor judgment debtors has paid more than a pro rata share of a judgment”].)

Here, there has been no rendition of a judgment; as such, this cause of action is premature. For this reason, the demurrer to this cause of action is **sustained**.

(12)equitable indemnity

Cross-Defendants demur to Cross-Complainant’s equitable indemnity cause of action on the grounds that Cross-Complainant “fail[s] to allege specific facts showing how Cross-Defendants are liable to indemnify Cross-Complainant for any damages that may be awarded to Plaintiffs in the underlying action.” (Dem. at 6:17-19.) In opposition, Cross-Complainant argues that “Farrell properly alleges that the Nists are liable for the damages they assert because they caused the damages themselves.” (Opp. at 7:13-14.)

“The elements of a cause of action for [equitable] indemnity are (1) a showing of fault on the part of the indemnitor and (2) resulting in damages to the indemnitee for which the indemnitor is ... equitably responsible.” (*Bailey v. Safeway, Inc.* (2011) 199 Cal.App.4th 206, 217.) “To state a claim for equitable indemnity, a defendant must allege the same harm for which he may be held liable is properly attributable—at least in part—to the cross-defendant.” (*Platt v. Coldwell Banker Residential Real Estate Services* (1990) 217 Cal.App.3d 1439, 1445, fn.7.)

“The right to indemnity flows from payment of a joint legal obligation on another’s behalf.” (*Bailey v. Safeway, Inc.*, supra, 199 Cal.App.4th at p. 212.)

Here, Farrell has not alleged a joint legal obligation with the Nists. Rather, Farrell alleges that “[t]he Nists’ claims in the related Complaint against Farrell arise from the actions, conduct, and omissions of Cross-Defendants, and each of them, as alleged above and herein, and not from the actions conduct, and omissions of Farrell.” (XC at ¶ 109.) Given that the Nists themselves are Cross-Defendants, this allegation is both internally inconsistent and inconsistent with the legal theory of equitable indemnity.

The Demurrer to this cause of action is **sustained**, with leave to amend.

(13)comparative indemnity

Cross-Defendants challenge Cross-Complainants claim for comparative indemnity on the grounds that the Cross-Complaint “fail[s] to specific facts showing how Cross-Defendants are liable to indemnify Cross-Complainant for any damages that may be awarded to Plaintiffs in the underlying action.” (Dem. at 6:18-19.)

Comparative indemnity and apportionment of fault are remedies that apply to joint tortfeasors: “In any action for personal injury, property damage, or wrongful death, based upon principles of comparative fault, the liability of each defendant for non-economic damages shall be several only and shall not be joint. Each defendant shall be liable only for the amount of non-economic damages allocated to that defendant in direct proportion to that defendant’s percentage of fault, and a separate judgment shall be rendered against the defendant for that amount.” (Civ. Code § 1431.2, subd. (a).) “It is well-settled in California that equitable indemnity is only available among tortfeasors who are jointly and severally liable for the plaintiff’s injury.” (*Stop Loss Ins. Brokers, Inc. v. Brown & Toland Medical Group* (2006) 143 Cal.App.4th 1036.)

The Court’s confusion with respect to this cause of action arises primarily from the following paragraph of the Cross-Complaint:

Cross-Complainant contends that she is in no way legally responsible for the events giving rise to Plaintiffs’ causes of action, or legally responsible in any other manner for the damages allegedly sustained by Plaintiff. However, if as a result of the matters alleged in Plaintiffs’ operative Complaint, this Cross-Complainant is held liable for all or any part of the claim for damages asserted against it by Plaintiff, Cross-Defendants, and each of them, to the extent that their fault was a proximate cause of Plaintiff’s damages and/or losses, are responsible for said damages and/or losses in proportion to each Cross-Defendants’ comparative negligence and this Cross-Complainant is entitled to a determination of several liability

(XC at ¶ 119)

The Nists are both Plaintiffs and Cross-Defendants. The legal theory under which they would be held jointly liable with Farrell for their own damages in the underlying case is unclear, and Cross-Complainant has provided no authority in opposition that might inform the Court.

The Demurrer to the cause of action for comparative indemnity is **sustained**, with leave to amend.

(15) declaratory relief

Cross-Defendant argues that the declaratory relief action “fails to allege a present, actual controversy between the parties requiring judicial declaration.” (Dem. at 7:1-2.)

The elements of a cause of action for declaratory relief are: “(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to rights or obligations of a party.” (*Childhelp, Inc. v. City of Los Angeles* (2023) 91 Cal.App.5th 224, 235; see also *Lee v. Silveira* (2016) 6 Cal.App.5th 527, 546; *Brownfield v. Daniel Freeman Marina Hospital* (1989) 208 Cal.App.3d 405, 410.)

Here, Cross-Complainant has alleged a controversy between the parties with the respect to her Property (see *supra*). The Demurrer to this cause of action is **overruled**.